

FHS Theory of Politics: Democracy

Reading List:

Reading:

Robert Dahl, *On Democracy*, chapters 4-5.

Joshua Cohen, 'Deliberation and Democratic Legitimacy', in J. Cohen, *Philosophy, Politics, and Democracy*.

Amy Gutmann and Dennis Thompson, *Democracy and Disagreement*, chapter 2.

Iris Marion Young, *Inclusion and Democracy*, chapters 1, 2.

Danielle Allen, *Talking to Strangers*, especially chapters 3-4, 8-11.

Further reading:

Chantal Mouffe, *The Return of the Political*, chapters 1, 3-5, 8.

James Fishkin, *The Voice of the People*.

Archon Fung, 'Recipes for Public Spheres: Eight Institutional Design Choices and Their Consequences', *Journal of Political Philosophy* 11, 2003.

Hélène Landemore, 'Inclusive Constitution-Making: the Icelandic Experiment', *Journal of Political Philosophy*, 23, 2015, pp.166-191.

Amy Lang, 'But Is It for Real? The British Columbia Citizens' Assembly as a Model of State-Sponsored Citizen Empowerment', *Politics and Society*, 35, 2007, pp.35-69.

Samuel Freeman, 'Deliberative Democracy: A Sympathetic Comment', *Philosophy and Public Affairs*, 29 (4), 2000, pp. 371-418.

David Estlund, *Democratic Authority*.

Thomas Christiano, *The Rule of the Many*.

Philip Pettit, *On the People's Terms*.

Anne Philipps, *The Politics of Presence*.

Graham Smith, *Democratic Innovations*.

Past Essay Questions:

'Deliberative democracy is too utopian an ideal to be helpful in real-world politics.' Discuss. [2024]

'If we could truly trust the experts, then democracy would be redundant.' Discuss. [2023]

Should democracy be prioritised over all other political values? [2022]

What role, if any, should 'epistemic benefits' play in efforts to justify democracy? [2021]

Is an electoral system democratic if only a minority of eligible citizens actually vote? [2020]

Actual Notes

Deliberative Democracy

What is Deliberative Democracy?

- It is not the fact that there is discussion in the former and none in the latter since it is only rational for people to gain further information about other's preferences under an aggregative democracy
- What distinguishes the two consists in the kinds of reasons it admits into the political arena. Aggregative democracy focuses on sectional and private interests, while deliberative democracy advances an ethos of public reasoning oriented towards the common good.
 - Aggregative democracy may be thought of as merely institutionalised conflict

Cohen's Ideal Deliberative Democracy

- Cohen's main argument for deliberative democracy is that deliberative democracy as free and fair reasoning oriented towards the common good between equals mirrors the Rawls' initial choice situation (the Original Position) which intimates a 'structure of fair representation of persons'
 - 'The original position serves as an abstract model of what fair conditions are, and of what we should strive to mirror in our political institutions, rather than as an initial-choice situation in which regulative principles for those institutions are selected'
 - We want our political institutions themselves to conform to the conditions of justice/fairness since we want democracy to yield just outcomes
 - Cohen thus imports the purely procedural nature of justice into democracy: the value of democracy becomes purely procedural. There is no objective set of outcomes that we can test the outcomes of democracy against; if the procedure of democracy is just, so are their outcomes
 - The reason for being oriented towards the common good rather than just 'a system of bargaining with fair representation for all groups' is because we 'consider what is required to preserve fair arrangements and to achieve fair outcomes'
- Formal structure: minimal conditions for what a deliberative democracy is
 - A deliberative democracy is an ongoing and independent association, whose members expect it to continue into the indefinite future (stability condition)
 - The members of the association share the view that the appropriate terms of association provide a framework for or are the results of their deliberation
 - They are a commitment to coordinating their activities within institutions that make deliberation possible and according to norms that they arrive at through their deliberations. For them, free deliberation among equals is the basis of legitimacy
 - A deliberative democracy is a pluralist association. The members have diverse preferences, convictions and ideals concerning the conduct of their own lives.

While sharing a commitment to the deliberative resolution of problems of collective choice, they also have divergent aims, and do not think that some particular set of preferences, convictions or ideals is mandatory.

- Because the members of a democratic association regard deliberative procedures as the source of legitimacy, it is important to them that the terms of their deliberation but also be manifest to them as such. They prefer institutions in which the connections between deliberation and outcomes are evident to ones in which the connections are less clear
- The members recognise one another as having deliberative capacities, i.e. the capacities required for entering into a public exchange of reasons and for acting on the results of such public reasoning
- The Ideal Deliberative Procedure: conditions to achieve free and fair reasoning oriented towards the common good, thereby legitimising the democratic procedure
 - Ideal deliberation is free in that it satisfies two conditions. First, the participants regard themselves as bound only by the results of their deliberation and by the preconditions for that deliberation. Their consideration of proposals is not constrained by the authority of prior norms or requirements. Second, the participants suppose that they can act from the results, taking the fact that **a certain decision is arrived at through their deliberation as a sufficient reason for complying with it**
 - Deliberation is reasoned in that the parties of it are required to state their reasons for advancing proposals, supporting them, or criticising them. They give reasons with the expectation that those reasons (and not their power) will settle the fate of their proposal. In ideal deliberation, no force except that of the better argument is exercised.
 - Reasons are offered with the aim of bringing others to accept the proposal, given their disparate ends and their commitment to settling the conditions of their association through free deliberation among equals. The deliberative conception emphasises that collective choices should be made in a deliberative way and not only that those choices should have a desirable fit with the preferences of citizens
 - In ideal deliberation parties are both **formally and substantively equal**. They are **formally equal in that the rules regulating the procedure do not single out individuals**. Everyone with the deliberative capacities has equal standing at each state of the deliberative process. The participants are **substantively equal in that the existing distribution of power and resources does not shape their chances to contribute to deliberation**. Nor does that distribution play an authoritative role in deliberation
 - The existing system of rights do not bound the participants but this system is the potential object of their deliberative judgement

- Ideal deliberation aims to arrive at a rationally motivated consensus, to find reasons that are persuasive to all who are committed to acting on the results of a free and reasoned assessment of alternatives by equals. If there are no consensual reasons which are forthcoming, deliberation concludes with voting, subject to some form of majority rule
- Cohen thinks that deliberative democracy secures two things: autonomy (and therefore in some sense liberty) and the common good
- Common good
 - Promotes the common good instead of personal interest for two reasons: (1) members are committed to resolving their differences through deliberation and thus provide reasons that they sincerely expect to be persuasive to others who share that commitment; (2) a consequence of the reasonableness of the deliberative procedure together with the condition of pluralism is that the mere fact of having a preference/conviction is insufficient to support a proposal
 - The motivational thesis is that the need to advance reasons that persuade others will help to shape the motivations that people bring to the deliberative procedure in two ways: (1) it will shape the content of preferences and convictions (I realise I have no good reasons for my belief and thus adapt); (2) the practice of presenting reasons will contribute to the formation of a commitment to the deliberative resolutions of political questions
- Autonomy
 - Actions fail to be autonomous if the preferences on which an agent acts are, roughly, given by the circumstances, and not determined by the agent
 - Two threats to autonomy: (1) adaptive preferences – preferences that shift with changes in the circumstances of the agent without any deliberate contribution by the agent to that shift (2) accommodationist preferences – psychological adjustments to conditions of subordination in which individuals are not recognised as having the capacity for self-government
 - Adaptive preferences underlines the importance of conditions that permit and encourage the deliberative formation of preferences; accommodationist preferences indicates the need for favourable conditions for the exercise of the deliberative capacities
 - Ideal deliberative procedure neutralises the threat of accommodative preferences via muting the difference between relations of power and subordination and each individual being recognised as having deliberative capacities
 - Resolves the threat of adaptive preferences since preferences are formed by deliberative procedures, making these types of preference formation

consistent with autonomy since they are not simply given by external circumstances

Objections

- Objectionably secretarian: the political conception is objectionably secretarian because its justification depends on a particular view of the human good (because politics is about locating the conception of the good) → but the democratic conception is organised around a view of political justification – that justification proceeds through free deliberation among equal citizens – and not around a conception of the proper conduct of life
 - But is the value of deliberation not inherently tied to self-government, which is a conception of the good? This is why I suspect Cohen's use of "political justification" obfuscates the true reason for why democracy is not objectionably secretarian – what renders a political association secretarian is that it relies on a particular view of an *individual's* good. Democracy, and every other political association, is justified based on a particular view of what is good for *the community* – whether it is efficiency, self-government etc. So, such a value of democracy is reasonable, given that it is not committed to any view of an individual's good and thus does not presuppose certain outcomes from democracy.
- Incoherence: Since majority rule is unstable, the actual decision of the majority will not be determined by preferences themselves but by the particular institutional constraints under which they were made. This is independent of actual preferences → government by institutions and not by ourselves
- Injustice: **Basic liberties are dependent on judgements** → unacceptable
 - But Cohen argues that **basic liberties are secured prior to deliberation because such rights are required for determining what advances the common good**
 - We can call these non-political rights
 - Even for rights that are independent of issues on public policy (like expression not about public policy) → but politics is about forming preferences as much as articulating and aggregating them which such rights in preserving the private life allows us to do
- Irrelevance: begins from the assumption that direct democracy with legislative assemblies is impossible so it is irrelevant to our circumstances
 - But direct democracy is not uniquely suitable to institutionalise the ideal procedure
 - Institutionalising deliberative democracy is simply the existence of arenas in which citizens can propose issues for the political agenda and participate in debate about those issues
 - Material inequalities are an important source of political inequalities

- Deliberative arenas organised exclusively on local, sectional or issue-specific lines are likely to bring together a narrow range of interests and can at best produce coherent sectional interests instead of a more comprehensive account of the common good
- A deeper argument for irrelevance: implausibility and lack of necessity
 - Implausibility: Cohen underplays the deep political and moral disagreements that characterise our society. As Mouffe argues, we are made up of different identities – cultural, religious etc. She presses the point that ‘the condition of existence of every identity is the affirmation of a difference’ and that the political realm is characterised by a ‘us-them’ or an ‘enemy’ relation. For Mouffe, such antagonisms between identities are fundamental to our political fabric. Even further, Mouffe suggests that democracy is dependent on these antagonisms because they represent that issues are still being contested upon – for without them, society eventuates into a disquieting apathy and ‘consensus’ is a façade hiding the fact that groups are silently excluded and dominated. Now, I do not think that Mouffe’s analysis that democracy is dependent on these antagonisms is convincing; we can easily imagine a democracy of homogenous individuals with shared values and where no one is excluded. But I suspect that Mouffe is at least right in highlighting how antagonisms underpin our political fabric. We see this in Young’s insight of how disagreement often arises from fundamentally different moral premises which stem from cultural differences. The upshot of this is that if disagreement is so fundamentally irreconcilable, deliberation seems to be an unrealistic and thus irrelevant view of democracy. Clearly then, Cohen offers a rather shallow account of deliberation because it imports Rawls’ flawed assumption of individuals capable of conducting rational reflection divorced from their own prior identities and is thus unable to cope with the extent of disagreement.
 - Problem of uniqueness: Under the backdrop of extensive disagreement, Mouffe offers an alternative aggregative model with a shared ethico-political framework to ‘defuse’ moral disagreement and ‘render it safe’. For Mouffe, deliberating to reach consensus is a fool’s errand, and we should instead focus on developing mechanisms parallel to preference aggregation that transforms the opponent from ‘an enemy to be destroyed’ into an ‘adversary whose existence is legitimate and must be tolerated’. I will not explicate Mouffe’s theory here, but we can at least see that if Mouffe’s model is workable, that deliberation is unnecessary for democracy.

Enriching the Deliberative Model: Citizenship and Communication

Young’s theory of communication and narratives

- Deliberative democracy

- Political actors not only express preferences and interests but engage with one another to justify claims and proposals in terms acceptable to all
- Process is not merely about expression but also the transformation of preferences consistent with autonomy (see Cohen)
- When we think of the deliberative model, we overly abstract the decision situation → it does not look like the Original Position in anyway
 - Most political decisions are more specific and contextualised than the design of institutions or the principles of justice
 - It is usually about the particular judgement about what actions and policies this collective should adopt to address these circumstances
- We must think about the theoretical reasons for thinking that a democratic political process is likely to promote the most just outcomes → achieving equality and non-domination
 - The structure and norms of ideal deliberative democracy must therefore provide the epistemic conditions for collective knowledge of which proposals are most likely in fact to promote results that are wise and just
 - Discussion must be comprehensive enough to reflect all social experience which everyone can speak and criticise freely
 - Democracy is about achieving self-determination (antithetical to domination) and self-development (capability approach)
- We must adapt democratic theory for unideal, unjust conditions → the circumstances of justice whereby individuals are roughly equal do not exist (even in their ability to communicate)
 - The ideal theory expresses conditions that often operate as implicit regulative norms guiding social cooperation but which are never perfectly realised
 - Ideal theory rules out the possibility of the influence of prior commitments, unconscious prejudices, and authority which colour even the most well-intentioned deliberations in actual democracies
- The connection between democracy and justice appears circular: ideal processes of deliberative democracy leads to substantively just outcomes because deliberation begins from a starting point of justice
 - All potentially affected persons are included in the discussions, and all are able to speak freely and criticise where no one is in a position to threaten or coerce others
- Political practice guided by norms of deliberative democracy can make it more inclusive of plural claims and perspectives and empowering for less privileged participants
- Limitations of some interpretations of the deliberative model: Full political equality is still vulnerable to excluding or marginalising some members of the polity

- Argument 1: Privileging argument
 - Argument constitutes the primary form of political communication
 - Privileges certain interpretations of what a good argument means over other forms of communications
 - Sometimes deliberation cannot proceed unless there are commonly shared premisses that everyone accepts
 - The heterogeneity of human life and complexity of social structures and interaction means that if we try to mould arguments according to shared premisses within shared discursive frameworks excludes the expression of some needs, interests and suffering of injustice
 - Even if participants in political discussion do share premisses and idiom of discussion, the norms that practices and theories of deliberation often assume can privilege some and disadvantage others → expectations about norms of articulateness and dispassionateness sometimes serve to devalue or dismiss the efforts of some participants to make their claims and arguments to a political public
 - Privileges highly educated people who are more articulate
 - The norm of articulateness is furthermore culturally specific → and those who conform to such norms tend to be socially privileged
 - Privileges reason over emotion while presupposing their opposition → prioritises objectivity
- Argument 2: Privileging unity
 - The subject of public discussion is the common good → but sometimes depends on a prior unit among its participants → Walzer argues that the effective social critic locates and appeals to a community's prior 'shared understanding' in levelling her or his criticism
 - Miller thinks that only the sense of commonality provided by nationality can support the trust and mutual respect necessary for deliberation to begin
 - Problem with multiculturalism: most pluralist societies cannot assume that we sufficiently share understanding to which we can appeal to during contestation and solving collective problems
 - Gender differences are present in every political unit, and differences of class also separate experience and culture in most societies
 - Obviates the need for transformations from self-regarding to enlarged thought which is an important aspect of a discussion based model of democracy → public spirited reasoning

- Some theorists position unity as the goal, not the genesis of deliberative dialogue as participants transient their self-regarding perspectives through seeking the good of the whole
- Three problems with this: (1) idea of a common good can serve as a means of exclusion, because often times, it is the less privileged who are asked to set aside their expression of their experience which may require a different way of speaking for the sake of the common good whose definition is biased against them; (2) putting a premium on a common good in the sense of values shared by all is liable to narrow possible agenda during deliberation and effectively silence some points of view – sometimes, we can change our position during discussion even without thinking that these are values we all share (sacrifice); (3) much of the most important applications of political dialogue are regarding issues people find difficult with little prospect for consensus – emphasising consensus seems to remove difficult topics from discussions which showcase deep-seated disagreements
- Argument 3: Assuming face-to-face discussion
 - Rousseauian single forum where deliberators face each other directly
 - Not true in large-scale societies where there are separate neighbourhoods and cultural centers
 - We mistakenly assume what Habermas calls a ‘centred’ image of the democratic process where there is a single body of discussion
 - However, we have a decentred democracy whereby the processes of communication that give normative and rational meaning to democracy occur as flows and exchanges among various social sectors not brought together under a unifying principles → different cultural narratives
- Argument 4: Assuming a norm of order
 - Some people may break rules of civility
 - Assumes polite, orderly, dispassionate and gentlemanly argument and ignores the place of emotional discourse
 - Mouffe: liberal democracy tends to resolve social pluralism into a political unity in a manner that subordinates political expression to an overly rationalistic set of normative requirements and thereby theorises away antagonisms and contestation endemic to the process of democratic politics
 - Ignores that the normal condition of democratic debate as a process of struggle → a process of communicative engagement of citizens with one another

- We must have a democratic process that retains deliberative democracy's account of both communicative orientation towards normative reason and of the transformation of private, self-regarding desire into public appeals to justice
- Young's solution of inclusive political communication to avoid internal exclusions that privilege specific styles of expression and the participation of some people as violating the norm of order
 - External vs internal exclusion
 - External exclusion is the failure to achieve political equality → resources allowing you to have outsized power to dominate others
 - Internal exclusion is intrinsic exclusions systemic to the model of deliberation: like privileging articulateness
 - Greeting (I think this is stupid)
 - Basically acknowledgement of individuals to display respect
 - Recognising others as a basic element of justice
 - Rhetoric
 - Beyond rational speech, beyond universalistic, dispassionate, culturally and stylistically neutral arguments
 - Ideal of disembodied, disembedded reason is a fiction because dispassionate expression carries the rhetorical nuances of particular situated social positions and relations which social conventions do not consider rhetorical
 - Argument from inclusivity: We invite a plurality of expressions that are not merely labelled as articulate → passion allows us to pierce through the failures of understanding and epistemic access
 - We do not privilege certain norms of communication that are inadvertently culturally specific over others
 - It is arbitrary to separate speech acts whose function is solely to communicate meaning and reach understanding from speech acts that serve the goal to produce specific effects on listeners
 - Argument from efficacy: Further to Young's point, we often assume that the content of a message and the mode of expression are independent → but a passionate mode of expression can itself import substantive meaning that is difficult to express dispassionately
 - We cannot purify our messages into rational argument without loss
 - Rhetoric can often help motivate issues of the ground
 - Rhetoric fashions claims and arguments appropriate to a particular public in a particular situation → discussions are particular with respect to forum, participants, audience and

histories → metaphors and symbols are invoked to effectively communicate to others → we construct our messages in a way that is in line with our particular contexts

- Rhetoric motivates the move from reason to judgement: tells us normatively how something affects others; plays an effective role at transforming and persuading others to change their positions
 - Rhetoric is not always disingenuous and often times truthful and honest
- Narrative and situated knowledge
 - Some internal exclusions occur because participants in a political public do not have sufficiently shared understandings to fashion a set of arguments with shared premisses or appeals to shared experiences and values
 - We need to tell complex and complete stories in the form of narratives to allow this epistemic access to people from a plurality of cultures → idioms and stories translate experiences in a way that is intelligible to others
 - White articulates this function of narrative as explicating normative starting-points which different groups may have in a deliberative context
 - Example of how testimonials of sexual harassment gradually came into public discussion through women telling stories before the language and vocabulary of sexual harassment was invented
 - These stories allowed men and other women to understand their plight
 - Stories allow the facilitation of local publics and articulation of collective affinities
 - Multicultural societies often come in local publics (small neighbourhoods) → allows people to come together under common stories

Allen's theory of political friendship as citizenship

- We require democracy to be stable
 - Disagreement is inevitable and unlike Rousseau, we should accept it as a political fact and live with it rather than trying to construct it away
 - Sacrifice is a necessary democratic fact because people benefit at the "expense of others" → my preference is voted in at the expense of your preference being voted out
- Allen's solution to the problem of persistent sacrifice is that of political friendship, that is, inculcating a spirit of reciprocity and "equity". This Aristotelian notion means that sacrifices from one group are honoured and reciprocated via sacrifices from

another, sharing the “benefits and burdens [of collective choice] more or less equally.”

- This zeroes in on the limits of the analysis of democracy. Too often, we consider democratic choice to be a single shot, once off game. This is why it seems so difficult to reconcile Rousseau’s democratic procedure and the general will with deep political disagreement. We assume that the losses incurred by the “losers” must be resolved *within that choice itself*.
- We fail to realise that democracy is in effect an iterative, repeated game – the common good is achieved not via a single decision, but through a series of collective choices over time. To preserve democracy then requires a mode of democratic citizenship embodying political friendship and reciprocity which is independent of majority rule – it is the social preconditions that majority rule requires for it to remain stable, and thus truly become democracy which stands the test of time.
- Political friendship is the realisation that our interests are not necessarily rivalrous, that they can be accommodated over time
- For Allen, she follows Mouffe by saying that ‘sacrifice is a democratic fact’, that ‘consensus’ results in the loss of someone else’s wants. However, departing from Mouffe, she implicitly argues that this does not mean that deliberative democracy fails to cope with democratic disagreement, but rather that deliberation must be enhanced with a notion of citizenship.
- For Allen, citizenship is what she terms ‘political friendship’. In acknowledging each other as friends, we understand that the ‘burdens and benefits must be shared [somewhat] equally’. In turn, deliberative democracy must ‘honour sacrifices’ by making the commitment that a group’s sacrifice is compensated in some way in the future. She makes the example of NAIRU, whereby we allow some individuals to be unemployed for the sake of inflation – and in order to retain their individual sovereignty, we must ensure that they are not always the ones who are sacrificing. Deliberative democracy then, secures political equality even under conditions of sacrifice via a mutual understanding that my sacrifice will be honoured and reciprocated in the future.
 - This makes contact with Pettit’s notion of non-domination – for since political friendship renders deliberation ‘controlled’ by my (future) interests, I am not subject to an uncontrolled power. It seems that it is only through public oriented deliberations that such mutual understanding can permeate political discourse; aggregative models prioritise individual interests and do not make way for such public oriented reasons and understanding.
- 2 comments on Allen’s theory
 - First, Allen’s theory of sacrifice and reciprocity seems to work well when it is about socioeconomic policies and less so when they are about moral disagreements. Contrast the NAIRU example with Gutmann’s discussion on

the abortion debate. When abortion was legalised, ostensibly the 'pro-life' group made a 'sacrifice' towards the pro-abortionist. Yet, it does not seem that it makes much sense to say that the 'pro-life' group ought to have their interests compensated in some way in the. Reciprocity, therefore, takes a different form when disagreements are moral, that of what Gutmann terms 'moral accommodation'. It calls for constructive interaction and a 'favourable attitude' towards the person with whom one disagrees. They must maintain that they are open to changing their minds should they be proven wrong in the future and are not bounded by moral dogmatism. The continued respectful contestability of even resolved moral differences allows for political equality to be maintained.

- Second, I contend that Allen's citizenship as political friendship offers a model for robust political communication. When we interact with our friends, we often also come from different cultures or different premises. But when deliberating over important issues, we reason with reference to what we share in common – our friendship. This does not mean that we are oriented towards the common good (for Mouffe claims that this does not exist). Rather, we deliberate with reference to the common values or principles (not common substantive ends) i.e. I want my friend to be better off as well or that a citizen has a fundamental right to some nonpolitical liberty, which in turn allows us to articulate our narratives in a mutually tractable way. Furthermore, as Gutmann points out, citizens (or friends) often share some common moral principles – in the abortion debate, both sides agree that the innocent should not be killed. So, while people may not share common substantive ends, they do share common (moral) values and principles. By expanding political communication in this way, deliberation and public oriented reasons seem to be the only way to prevent internal exclusion, for without reference to our shared political friendship, we cannot possibly bypass our differences in terms of our norms for articulateness and our moral premises.

Gutmann and Thompson's notion of reciprocity and moral accommodation

- Deliberative democracy is characterised by the leading principle of reciprocity because it shapes the meaning of publicity and accountability while influencing the interpretation of liberty and opportunity
 - Foundation of reciprocity is the capacity to seek fair terms of social cooperation for their own sake
 - Better than impartiality because impartiality demands that citizens must disregard partial perspectives and individual projects when making policies and laws which is clearly implausible
- A theory of reciprocity

- Requirement 1: It prescribes accommodation based on mutual respect
 - Agreement based on substantive moral principles justified on the basis of mutually acceptable reasons → Universal healthcare makes appeal to a mutually acceptable principle of basic opportunity for all
 - Such reasons can only be discovered during deliberation itself
- Requirement 2: When moral reasoning relies on empirical claims, they must be based on relatively reliable methods of inquiry → beliefs that could be true without needing to reject reliable methods of inquiry vs those that could be true only if we abandoned such methods
- A claim fails to respect reciprocity if it imposes a requirement on other citizens to adopt one's secretariat way of life as a condition for gaining access to the moral understanding that is essential to judging the validity of one's moral claims
 - Principle of reciprocity tells citizens to appeal to reasons that are recognisably moral in form and mutually acceptable in content
 - For example, debate over curriculum teaching children about "areas where the Bible gives an answer" → requires children to subscribe to a sectarian mode of life
- Why reciprocity is not bargaining
 - Bargaining does not admit public spirited reasoning → not oriented towards the common good
 - Some citizens have far greater bargaining power than others → non-ideal society
- Why reciprocity is not impartiality
 - Reciprocity does not treat moral disagreement as a failure unlike impartiality
 - Abortion inputs moral disagreement and outputs the same → persistent moral disagreement → reciprocity does not merely consider the goal of moral reasoning as convergence into consensus
 - Impartiality implies toleration but reciprocity demands more than toleration but accommodation → to view our opponents with a sense of favourability and not condescension → offers a more robust sense of citizenship that does not require people to devote their lives to political participation
 - Mutual respect
- Deliberative democracy makes ample room for bargaining as long as contestation accepts moral reciprocity as a constraint on their reasons for action
 - Reciprocity would permit bargaining even where deliberation would be morally preferable → when people refuse to deliberate
- How reciprocity deals with deliberative disagreement
 - Often times, disagreement may be persistent and irresolvable because competing moral claims in some controversies are inherently incompatible → like abortion

- Reciprocity places citizens opposed to each other, and yet still searching terms for fair cooperation → unlike ordinary moral conflict, where there are no reciprocal reasons for rejecting the other
 - Reciprocity is expressed through understanding that the contrary opinions remains grounded on some moral reasons in a mutually acceptable manner (racial discrimination does not pass this test but capital punishment might)
- Meaning of moral accommodation
 - More than just toleration → requires a favourable attitude toward, and constructive interaction with the persons with whom one disagrees → an excellence of character that permits a democracy to flourish in the face of disagreement
 - Mutual respect sustains a moral community in the face of conflict and helps resolve the contestation → keeps open the possibility of a solution in the future
 - Discourages moral rigidity and dogmatism → moral accommodation forces citizens to relinquish moral arrogance and presumption
- Civic integrity
 - Demands a moral integrity in politics: (1) consistency in speech – moral positions are supported independent of circumstance and signifies political sincerity (not just because I am situated in a particular context), (2) consistency between speech and action (opponent of abortion cannot actually engage in abortion for himself and his family), (3) integrity of principle – accepting the corollaries of one's own moral position and its corresponding implications
- Mutual respect, as expressed through the two principles of accommodation, thus extends the principle of reciprocity by encouraging citizens and public officials to appreciate the moral character of the positions of people with whom they disagree
 - Imposes demands on both institutions and individuals through citizenship
- Achieve democracy within the limits of reciprocity
 - Need not choose between modelling democracy on procedural principles of founding it on comprehensive conceptions of the good → reciprocity is a comprehensive and thus not sectarian conception of the good

The question of plausibility: can deliberative democracy be realised in the real world?

Icelandic model of constitutional participation (Landemore)

- Constitutional council of twenty-five individuals: 15 men, 10 women without any sort of prior political experience

- Ultimate proposal on the constitution to be put to a popular referendum before being passed into law by the Parliament
- Has not been successful due to institutional hurdles
- Process
 - Wanted to have a forum with 950 randomly selected individuals tasked with establishing 'the principal viewpoints and points of emphasis of the public concerning the organisation of the country's government and its constitution' → reflect the preferences of the Icelandic people
 - Creation of a constitutional assembly with 25 elected delegates by direct personal election
 - Non-binding national referendum on the constitutional proposal
- Process is focused on inclusivity
 - Contrasts a recommendation by Elster → ideal constitution writing process be 'hourglass-shaped' – a wide upstream debate before the election of delegates, a closed and secret debate among the delegates, and a wide downstream debate between the drafting of a proposal and its submission to referendum
 - Icelandic experiment is wide open at every stage
 - Landemore thinks that the inclusivity takes place at three stages: (i) openness of the process to popular participation, (ii) (relative) descriptive representatives of the institutions and processes where direct participation of the population was not an option; and (iii) transparency
 - Upstream debate facilitated by the 2nd National Forum whose conclusions served as beginning points of deliberation
 - Referendums are clumsy ways of gathering views because it is a 'yes' or 'no' question on complex questions that do not facilitate deliberation
- Feedback loop
 - Incremental way of the creation of the draft → systematic back and forth eventuated between the council members and the crowd
 - First draft was just headings or chapter titles and once the structure was first exposed to comments, Council integrated these remarks and wrote up the actual text corresponding to each heading → the text was fleshed out incrementally and shown to the crowd and revised iteratively
 - Crowdsourcing of the constitutional-writing process is the most important dimension of the Icelandic constitutional experiment → collaborative like Wikipedia
- Descriptive representation i.e. statistical representation

- Cognitive diversity is introduced in the deliberations of a representative assembly and increasing its problem solving and generally epistemic properties
 - In terms of background, gender etc (degree of gender parity)
- Transparency
 - Under constant and openly solicited watch of the people unlike secret meetings between elites like in the US
 - Walls between first and second deliberative tracks was made more porous
- Limitations
 - Some say not bold enough or even more deliberation could have taken place
 - But suppose it was successful → the criticism would be that it may not work in much larger scale democracies with even more diverse populations such as the US or the UK → difficult to imagine how this would be replicated across other democracies → Landemore says that this question is 'impossible to [answer]'
 - But ideas such as a larger assembly and a fully crowdsourced constitution → may be more difficult at a larger scale
- Landemore's view: point of the National Forum was to take a snapshot of the Icelandic people's shared values and norms in order to form the consensual background for the Constitutional Council's deliberations, judgements and preference aggregations → what values do we actually share (rather than should share)

Canadian Model of participatory democracy (Lang)

- British Columbia's citizen assembly as a model of state sponsored deliberation → assembly members engaged in a process of creative deliberation that involved reframing the issues, refocusing the terms of the debate, and developing new criteria based on their lived experiences as voters
- BC citizen assembly and its institutional features
 - Meetings over the course of the year → learning phase (basically they learn about different electoral systems), a public hearing phase (arguments were articulated before the assembly through public submissions), and a deliberation phase → paid staff guided the work of the assembly participants with media coverage for transparency
 - 200 Participants were selected randomly → 20 randomly selected respondents from each district
 - Broadly represented the participants as a whole
 - Struggle to come to an agreement → discussions were often bogged down in questions clarifying the basic principles of the system → tension surrounding issue of local representation → eventually came to the conclusion that 'open regional party lists' might be something they could start agreeing on

- Did the citizens make suboptimal decisions and also decisions independently of others?
 - Members of legislature had to be at a distance from the assembly to ensure independence
 - Deliberations and proceedings were highly informal which led to the final authority being up to the staff → informality shows that deliberation can happen anywhere
- How participants came to develop the criteria they used to choose a new electoral system through
 - Descriptively representative group yielded a representative sample of views in deliberation
 - Group process was important for encouraging some participants to see their individual experiences as part of a collective experience and for encouraging or discouraging participant advocacy on behalf of social group interest
 - Importance of interaction: Rural assembly members discovered through conversation with each other (and with urban folk) that they had a common identity and set of experiences as voters in small group discussions
 - Rural participants had a common experience of feeling disconnected from what was going on in the legislature located at the southern tip of the province
 - Interactions with urban Assembly members helped to crystallise the sense that rural participants had some distinct experiences and interests when it came to electoral politics
- Limitations and prospects

Evaluation

- The problem with these models is that they assume that deliberation is restricted to some specific political arena i.e. a constitutional assembly; but this need not be so
- Once we recognise the demands of citizenship, we realise that deliberation must be interwoven with our daily lives → this is what Allen calls us to do when she describes us as being 'political friends' and to 'talk to strangers'
 - In Allen's description of citizenship, we can easily see Aristotelian undercurrents in the demands of participating in civic life → for Aristotle calls us to be 'political animals' → this means that we deliberate, not just in Congress, but in the marketplace, in the coffeeshops, in the gardens etc
 - "This Aristotelian virtue of public life, concerning proper interaction with strangers, looks like friendship even if it doesn't feel like it"
 - For Allen, deliberation as citizens is about informing our normative aspirations through our encounters with others in the polity
 - This is sharpened into clarity once we observe Allen's discussion on the use of rhetoric and differentiating between 'peitharkhein' vs 'peitharkhikon' where

the former 'establishes a hierarchical relationship' and the latter 'a relationship of democratic equality' → persuasion and deliberation is treated solely as a speech of a friend

- Allen's view transforms Cohen's arena of free and fair reasoning as one being restricted to the Chambers of Congress representative of the Original Position to the places of life much more intimate to our lives → this is where trust between citizens springs from
- Such deliberation in normal places informs the normative aspirations of each individuals, and these deliberations trickle down onto the 'ballot' where people's preferences are now one that has been challenged and debated with by their fellow citizens
 - We lose the 'independent' assumption that characterises Rousseauian voting in democracy, an attempt to force democracy into a contractarian structure → we are interdependent
 - These prior interdependence and deliberation is crucial to ensuring that deliberation takes place → unlike the earlier concrete models of deliberation which are merely formally inclusive, Allen's view of citizenship motivated from Aristotle's demand for citizens being political animals, envisages a more substantive view of an inclusive deliberative democracy that is possible

Aggregative Democracy

Mouffe's aggregative model

Mouffe's Marxist analysis of the political: that *deep and extensive disagreement* is an inevitable background of the political realm and that democracy paradoxically depends both on the *existence of such disagreements* and the *restraint of such disagreements*

- Mouffe's position is that rather than a democracy informed by a universalistic and rationalist framework, she advocates a view of a truly plural democracy, that draws upon the full implications of the pluralism of values and confronts the consequences of acknowledging the permanence of conflict and antagonisms
 - These conflicts act as irremovable empirical impediments that render impossible the full realisation of harmony due to the fact that we will never completely coincide with our rational universal self
 - But there is also a belief that a final resolution of conflicts is eventually possible, even if envisaged as an asymptotic approach to the regulative ideal of a free and unconstrained communication
 - Such a democracy will always be a 'democracy to come', as conflict and antagonism are at the same time its condition of possibility and the condition of impossibility of its full realisation
- Notion of democracy
 - Requires giving up the notion of an abstract, undifferentiated human nature

- Requires both democratic rights which while belonging to the individual can only be exercised collectively and which presupposes the existence of equal rights for others + also civic republicanism, to transcend the dichotomy between individual and political liberty (akin to negative and positive)

Mouffe's theory of agonistic pluralism as an aggregative model

- For Mouffe, democracy is about the considerations of *how to constrain* aggregative outcomes, once we 'accept the necessity of the political and the impossibility of a world without antagonisms, what needs to be envisaged is how it is possible under those conditions to create or maintain a pluralistic democratic order'
 - Mouffe thinks that the central function of democracy is to transform 'antagonisms' into mere 'agonisms' and to defuse the psychological tensions amongst citizens to prevent the domination of one group
 - 'The great strength of liberal democracy...is precisely that it provides the institutions that...can shape the element of hostility in a way that defuses its potential'
 - 'It requires that...the opponent should be considered not as an enemy to be destroyed, but as an adversary whose existence is legitimate and must be tolerated. We will fight against his ideas but we will not question his right to defend them. The category of the 'enemy' does not disappear but is displaced'
- Conception of liberty through civic republicanism
 - Quentin Skinner's civic republicanism, that does not postulate an objective notion of the good life (typical of -ve liberty), but includes ideals of political participation and civic virtue (typical of +ve liberty)
 - Idea of liberty is the capacity for individuals to pursue their own goals while also acknowledging the public functions that one is required to serve
 - If one is to exercise civic virtue and serve the common good, it is in order to guarantee oneself a certain degree of personal liberty which permits one to pursue one's own ends
 - Developing a new form of individuality that would be truly plural and democratic → we are in fact always multiple and contradictory subjects, inhabitants of a diversity of communities, constructed by a variety of discourses and precariously and temporarily sutured at the intersection of those subject positions
- Democratic Citizenship and the Political Community
 - The liberal view endorses an individual who is born free and equal and prior to society, and thus desires the same type of 'primary goods' → unencumbered self which leaves no room for a constitutive community

- The communitarian, civic republican view is that an individual is situated within a community and thus has a commitment to the public good that is independent of one's individual desires → emphasises the value of political participation
- The main problem is that the idea of the 'common good' has totalitarian implications, by demanding a citizenship of active political participation and having the common good as the prioritised reason for action and so is irreconcilable with negative liberty
 - Quentin Skinner shows that only as citizens of a 'free state', of a community whose members participate actively in the government, that such individual liberty can be guaranteed
 - To ensure our own liberty requires us to cultivate civic virtues and devote ourselves to the common good; the idea of a common good above our private interests is necessary for enjoying individual liberty
 - But unlike Rousseau, Skinner does not endorse a transcendental notion of the common good, but that it is dependent on the citizens
 - Reconciles the notion of individual liberty and political participation
- Mouffe wants to conceive of a mode of political association that does not postulate the existence of a substantive good but nevertheless implies the idea of commonality
 - This entails having a common language of civil intercourse (the respublica), establishing shared norms of conduct in seeking their self-chosen plan of life and a common political identity created by such shared norms and principles
 - Individuals have differing conceptions of the good, but what binds them together is their common recognition of a set of ethico-political values
 - Citizenship is not just one identity among others or the dominant identity that overrides all others but an 'articulating principle that affects the different subject positions of the social agent while allowing for a plurality of specific allegiances and for the respect of individual liberty'
 - Leads to a 'common recognition among different groups struggling for an extension and radicalisation of democracy that they have a common concern and that in choosing their actions they should subscribe to certain rules of conduct...it should construct a common political identity as radical democratic citizens'

Objections

Collapse

- My claim is that Mouffe's aggregative alternative is only different in *name*, and not in any meaningful sense. Like we have claimed thus far, Mouffe thinks that the central function of democracy is to transform 'antagonisms' into mere 'agonisms' and to defuse the psychological tensions amongst citizens to prevent the domination of one group. For Mouffe, an aggregative democracy must be complemented by a political association that is not centered around common substantive ends, and instead around a shared ethico-politico framework.
 - So, individuals achieve commonality through having a shared language of political intercourse, what she terms the *respublica*. In this way, conflicting groups understand that, in the pursuit of their sectional interests, they are not to violate fundamental obligations of toleration and respect towards the group that has lost the democratic contestation.
- Notice, however, how similar Mouffe's idea of a shared 'ethico-politico framework' is to Gutmann's idea of an expansive morality that cuts across individual's disparate moral frameworks.
 - This already motivates the perception that Mouffe may really be smuggling deliberation under a different name. And if Mouffe thinks that democracy needs to be centered around common values shared by citizens with a common language of political discourse, then is this not admitting a sort of public oriented reasons into the political arena?
 - When one engages in discourse in Mouffe's political arena, they still need to make reference to their common values precisely because they need to defuse the psychological tension which eventuated out of deep and extensive disagreement.
- If Mouffe wants to distinguish her model from a deliberative one, she cannot allow for the admission of public-spirited reasoning and therefore any sort of commonality amongst citizens. It is inconsistent for her to hold that (1) public spirited reasoning is not present and (2) that there exists a shared framework of values that individuals must make reference to and must be bound by during political contestation.
 - This inconsistency arises from Mouffe's mistake that deliberation *must* eventuate into consensus and that public spirited reasoning only involves discussions around common substantive ends, which we have shown, is an impoverished view of what deliberative democracy is.
- What might be different between deliberative democracy and Mouffe's aggregative alternative is that Mouffe only requires moral toleration while deliberative democracy often espouses an ethos of reciprocity and respect. But this just reveals that Mouffe's mechanism of 'toleration' might be too weak. Is it possible that, to defuse the tensions present in democratic contestation for instance for the NAIRU-unemployment conflict, we merely 'tolerate' the unemployed's existence. This seems extremely condescending precisely because their sacrifice is not recognized.

- And it is this condescension that accentuates tensions amongst conflicting groups. What is needed is exactly reciprocity to alleviate the antagonisms between groups and to transform their relation into mere 'adversaries' instead of 'enemies'.
- Therefore, Mouffe's aggregative alternative is not different from a deliberative model. Her inclusion of a shared ethico-political framework and a common language of political discourse allows for public spirited reasoning that makes reference to a shared citizenship and values that characterises deliberation. This inclusion is not an accident; it is because Mouffe recognizes that such public-spirited reasoning is the only way to restrain democracy and prevent the domination of democratic losers. The only substantive difference is her endorsement of toleration instead of reciprocity and accommodation. But this is not so much a difference as it is a relative inadequacy to Gutmann's or Allen's conceptions of democracy – if political disagreement is so deep as Mouffe claims it is, then toleration transforms into condescension which furthers the psychological tension she hopes to defuse. Reciprocity and explicit respect are the only way to defuse disagreement, which again, is inherently public-spirited and deliberative in nature. In effect, Mouffe offers not an alternative to deliberative democracy, but a recapitulation of why deliberation is necessary for democracy by emphasizing on political disagreement and the need for a shared framework of values.

Value of Democracy

Intrinsic values of democracy

Fairness and Justice

- Basically Cohen's argument that ideal deliberative democracy reflects the structure of fair representation in the Original Position
- Alternative argument is how through necessitating a rich conception of citizenship (Allen) and political communication (Young and Gutmann), democracy captures the Kantian notion of **reciprocity between equals**

Liberty

Pettit's On People's Terms: the case for republican freedom

Why not negative freedom

Barry's securing of rights via democracy

- Democracy is to be defined as procedural terms; reject the notion that one should build into democracy any constraints on the contents on the outcomes produced like substantive equality, respect for human rights etc + establish a formal connection

between preferences of the citizens and the outcomes produced (like majority rule) + equality only in participation, not in how the outcome affects individuals

- A gap between the majority principle and democratic procedures → no guarantee that elected representatives will on every issue vote in such a way that the outcome preferred by a majority of citizens will be the one chosen
 - But we could also say that no method of selecting law-makers and governments that was not democratic could provide a better long-run prospect of producing outcomes in accordance with the majority principle
- Instrumental reason: Mathematically, the majority principle will give each group a good chance of being in the majority over half the time insofar as groups are fluid (vs a monolithic majority block facing a minority which is always on the losing side) and that the majority principle would produce acceptable outcomes under favourable circumstances
- Intrinsic reason: Must move beyond instrumental reason because any procedure that produced the same outcomes would be equally acceptable; decision by majority has a natural attractiveness about it because **majority rule implies certain institutional preconditions that follow democratic institutions such as freedom of publication and political organisation**
 - These freedoms do not accompany non-democratic systems and the choice between trying to prevent the government from implementing unjust policies and trying to overthrow the government is a purely tactical one
 - This argument does not suppose that majority principle is attractive insofar as it corresponds to majority preferences; instead, it places the value on the associated institutions that accompany democratic procedures such as the majority rule
- Can be generalised beyond majority rule

Extrinsic values of democracy

Epistemic Supremacy

Estlund's case for epistemic proceduralism

- Estlund asks three questions
 - Do political truths exist? In what sense are they truths?
 - In what sense does democracy have normative/political authority? Is it sufficient and coherent to appeal to pure procedural values?
 - If political truths do exist and democracy appeals to substantive values to achieve normative authority, then why not an epistocracy? (Rule of the elite)

Minimalist conception of political truth and what constitutes political legitimacy

- Problem with truths in politics → conclusions preempt contestation

- Arendt argues that if we give way to political 'truths' then it will lead to paternalism and tyranny
- Minimal kind of truth: x is F is true in at least the minimal sense iff x is indeed F
 - Affirmative action is unjust is true minimally iff they hold that affirmative action is actually unjust → Estlund thinks that what might be true are procedure-independent normative standards by which political decisions ought to be judged rather than thinking that some political decisions are actually true
 - Cannot be political nihilists
- Acceptability requirements (block the expert → boss inference i.e. the move from "you are a better ruler" to "you are a legitimate ruler")
 - Acceptability requirements allow us to narrow down the political arrangements in consideration → allows Estlund to make the claim that democracy will be the best epistemic strategy from among those that are defensible in terms that are generally acceptable
- Qualified acceptability requirement: justification only needs to be acceptable to qualified points of view
 - Overly exclusive if we say that political justifications must be acceptable to all
 - Overly inclusive if we accept too many objections
 - Qualification: reasonably citizens without appealing to any sectarian notion of the good → a common viewpoint that takes on a moral shape intelligible to all
 - Rejecting that we should mandate Bible study even if Christianity is true because it makes an appeal to a specific kind of the good → truth and reasonability/legitimacy can come apart
- We must consider the qualified acceptability requirement as true or normatively successfully (true in the sense that it is indeed acceptable)
 - It can actually ground obligations → success need not only be true but can also come in the form of being acceptable to all
- Why would democracy not be the only acceptable mode?
 - Perhaps other acceptable modes might be election by lot

Estlund's rejection that procedural theories of democracy do not appeal to substantive values

- Plato's Euthypro problem: is the law loved by the gods because it is pious or is the law pious because it is loved by the gods
 - Democracy analogue: is a democratic outcome good because it is democratic or is an outcome democratic because it is good
 - Most theories about deliberative democracy are sympathetic towards the first prong only

- Criticism of Fair Proceduralism (that the reason why resulting laws from democracies are authoritative and legitimate is because it arises from a fair procedure): procedural fairness is a very thin and occasional value and cannot explain most features of democratic institutions that we think are crucial
 - An occasional value: Ignores the possibility that some things that could have been fair, but are not, do not have any vice or deficiency owing to their deviation from fairness
 - On this view that fairness is an occasional value, to say that something is fair is not yet to say that it conforms to any moral requirement of fairness; rather its fairness is one thing, and the question of whether it is required to be fair, or whether it is good in any way insofar as it is fair, are always further questions
 - Democracy does not use the idea of substantive fairness (that goods are distributed equally) but the idea of a fair procedure or what Estlund calls intrinsic procedural fairness (the nonretrospective nonprospective fairness of the procedure whether or not it is properly run)
 - Estlund suggests that the idea of a fair procedure would not even arise if it were common knowledge that everyone agreed about what the correct decision is → we retreat into the value of fairness because we do not know what the correct decision is
 - Another puzzle that fair proceduralism cannot answer is whether there would be anything wrong about using electrodes to ascertain individual preferences rather than asking them to fill up a sheet
 - Fairness cannot answer this question
 - Estlund suggests that anything other than fairness as full anonymity (blind to personal features i.e. results would not change if any features of the relevant people were changed) (since we call a coin flip fair) imports nonprocedural values
 - Puzzle: majority rule is a fair procedure in that it pays no attention to who casts a vote but random selection also does this
 - A theory of majority rule is only attractive if it is not substantively innocent and not based entirely on fairness
- Criticism of Deliberative Proceduralism: invokes procedure independent standards as well
 - Habermas: no standards that loom over the political process or policing its decisions, not even any standards of reason itself → only normative standards that apply to political decisions are non instrumental evaluations of the procedures that produced them i.e. “procedural rationality”
 - But Habermas argues that the reason outcomes are legitimate is that they “could have been produced by ideal deliberative procedures” → hypothetical and imaginary standards

- Use of hypothetical deliberative procedures as the standard for evaluating actual democratic decisions is one way of holding outcomes to a standard that is logically independent of their actual procedural source
- Cohen: the fundamental tenet of a deliberative account of democratic legitimacy is the principle that coercive political arrangements and decisions are morally illegitimate unless they can be justified in terms that can be accepted by citizens with the wide range of reasonable moral, religious and philosophical views likely to emerge in a free society
 - But Cohen would argue that once all democratically motivated constraints are respected, the value of democratic procedures is held to be intrinsic in some way and not based on any tendency to promote other values such as justice or common good
 - But too hypothetical and therefore independent of the procedure source to be considered wholly procedural
 - Cohen's view depends for its plausibility on appealing to standards for evaluating political decisions on grounds going beyond whether they stem from or promote actual democratic procedures

Estlund's twin burden for epistemic proceduralism: to show that democracy does appeal to some procedure-independent normative standard without making epistocracy superior

- Epistemic proceduralism
 - Estlund brings an analogy of a democracy to the jury system: the reason why a jury system or a jury's decision has any authority is not owed to the correctness of the decision, but the fact that the jury is the best epistemic device available to us to reach correct decisions
 - Democratically produced laws are legitimate and authoritative because they are produced by a procedure with a tendency to make correct decisions.
 - It is not an infallible procedure, and there might even be more accurate procedures.
 - But democracy is better than random and the epistemically best among those that are generally acceptable in the way that political legitimacy requires
 - Essential elements of the argument for the authority of the jury system are all present in a democratic system of government:
 - First, great value to having laws and policies that are substantively just
 - Second, a proper democratic procedure, like a jury is demographically neutral, blocking the qualified objections that would be possible to any individual comparisons
 - Third, a democratic procedure involves many citizens thinking together, potentially repeating the epistemic benefits this can bring,

promoting substantively just decisions better than a random procedure

- Fourth, there is no nondemocratic arrangement that all qualified points of view could agree would serve substantive justice better
- Rousseauian contours: asks the citizen to surrender her judgement to the properly conducted democratic process – “When, therefore, the opinion contrary to mine prevails, this proves merely that I was in error, and that what I took to be the general will was no so”
 - But Estlund departs from Rousseau in thinking that deference lies on only the fact that the result is the general will (i.e. being correct) → legitimacy even if incorrect by virtue of it being the best epistemic device
- Epistocracy and its argument
 - Strongest form is in Mill’s proposal that the more politically educated should receive more votes → is not as extreme as Plato’s philosopher-king proposal
 - The argument for epistocracy is: since the rule of the politically educated results in a wiser rule, such rule is better (i.e. is more politically legitimate and authoritative than other forms of rule)
- Against Epistocracy
 - Aristotle’s reply: it is not the average wisdom of the group that matters otherwise we just have a single platonic philosopher king. Rather, we should expand the group to capture all the wise individuals as such – for Aristotle, this counts against the Platonic argument and that we can always improve on the few wise by expanding the size of the group and having its members deliberate with each other before making group decisions
 - Estlund resists the move from “A well educated population will, other things equal, tend to rule more wisely” to “Where some are well educated and others are not, the polity would ceteris paribus be better ruled by giving the well educated more votes
- Further arguments against epistocracy
 - Demographic objection: the educated portion of the populace may disproportionately have epistemically damaging features that countervail the admitted epistemic benefits of education
 - Basically, privilege certain groups and leads to exclusion
 - What qualifies a person as the kind of moral knower
 - I think Aristotle’s reply is the strongest but can be modernised: if we think that wisdom is the knowledge of preferences, then everyone is wise to some varying degree then we should include everyone

The Question of Exclusivity: Are the values of democracy obtainable only via deliberation

- Yes in two ways

- Democracy must be deliberative
- Any non-deliberative democracy results in domination